

		Defendants shall give notice of the ruling, of the May 12, 2025 deadline to post jury fees, and of the May 26, 2026 trial date to all parties and to the levying officer.
52	Hanselmen v. Nasereddin, et al. 30-2024-01426304	Defendant Fouad Nasereddin and Lama Hamam's ("Defendants") motion to dismiss is denied. The court notes that the proof of service of the moving papers does not list the address of record for Plaintiff Connor Hanselmen's counsel. (ROA 26.) However, Plaintiff has opposed the motion on the merits and has not objected to this defect. Additionally, the court notes Plaintiff's proof of service reflects the opposition was electronically served on defendants. However, as self-represented litigants, electronic service on Defendants is not proper without their express consent. (Cal. Rules of Court, rule 2.251(c)(3); Orange County Superior Court Local Rule 352.) On the merits, the motion is denied. There is no statutory authority for using a motion to dismiss as a method to challenge opposing pleadings. Under the Code of Civil Procedure, motions to dismiss are expressly authorized only on specified grounds. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:370.) Here, the motion to dismiss is not based upon any of the specified grounds. Some courts have held that a motion to dismiss may serve the same function as a general demurrer. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 7:370.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code sections 451 or 452. On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-967.) Even if the court were to treat the motion to dismiss as a general demurrer, the motion would be denied because it relies on matters that are outside of the Complaint. Plaintiff's allegation that Defendants "were the respective owners and/or drivers of a certain 2015 FORD FOCUS SIL" is presumed to be true. (See Complaint, at ¶ 3.) Any special demurrer for uncertainty would also be overruled because the

		Complaint is not so unintelligible that Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) Accordingly, the motion is denied. Defendants are ordered to answer the Complaint within 15 days of the notice of ruling. The ruling renders moot Defendants' motion for leave to file a late demurrer. The October 31, 2025 hearing on that motion is hereby vacated. The court reminds the parties that litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal. Rules of Court, Rule 1.6(15) [defines "parties" as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) The fact that Defendants are self-represented litigants does not relieve them of the requirements, law, and procedures applied to all parties who appear in this court. Self-represented litigants are "held to the same standards as attorneys." (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543.) Plaintiff shall give notice of the ruling. CASE MANAGEMENT CONFERENCE
53	Kim v. Son, et al. 30-2024-01423705	Defendants Don Son, M.D. and Don Son M.D., Inc.'s demurrer to Plaintiff Young Ki Kim's Complaint is sustained with 15 days leave to amend. Defendants demur that the Complaint is barred by the one-year statute of limitations set forth in Code of Civil Procedure section 340.5. The limitations period for a medical malpractice claim is three years after the date of injury or one year after the plaintiff discovers or should have discovered the injury, whichever comes first. (Code Civ. Proc., § 340.5.) As the California Supreme Court explained: Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her. As we said in <i>Sanchez</i> and reiterated in <i>Gutierrez</i>, the limitations period begins once